

[Islamabad High Court]*Judges: Honourable Mr. Justice Khadim Hussain Soomro***Humayun Rind Baloch-**

versus

-The State etc.**RELEASE OF CASE PROPERTY / DIGITAL EVIDENCE**

CrI. Revision No. No. 44 of 2026
decided on 8th June, 2026.

(a)

The Court held that the mobile phone could not be released at the preliminary stage, as it constitutes a material piece of evidence and its return would create a reasonable apprehension of tampering, alteration, or loss of digital evidence.

When an electronic device recovered during an investigation yields a positive forensic report containing relevant and incriminating material, it assumes the character of case property and material evidence. Releasing such a device prior to the trial court's examination of its evidentiary value is not justified due to the risk of tampering, alteration, deletion, or loss of the digital contents.

Petitioner in person for Appellant.

Mr. Sarfraz Rauaf, Assistant Attorney General for Respondent.

the instant criminal revision, being devoid of merit, is hereby dismissed

ORDER SHEET

IN THE ISLAMABAD HIGH COURT, ISLAMABAD
JUDICIAL DEPARTMENT

CrI. Revision No. 44/2026

Humayun Rind Baloch

Versus

The State

S. No. of order/ proceedings	Date of order/ Proceedings	Order with signature of Judge and that of parties or counsel where :
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08.06.2026	Petitioner in person.	
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	Mr. Sarfraz Rauaf, Assistant Attorney General.	
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Khadim Hussain Soomro J:- Through this

writ petition, It is most respectfully prayed that this

Hon'ble Court may be pleased to:

"a). Admit the present Revision petition, call for the record of the case and after hearing the parties set aside the impugned order dated 0903.2026 to the extent I refuses to release the I Phone 13 Pro Max (Golden Color), 05 Tola Gold and Rs. 3,50,000/- cash,
b) Direct the I.O/SHO, NCCIA, CCRC, Islamabad to hand over the aforesaid

articles to the petitioner forthwith as deemed appropriate by this Hon'ble Court,

c) Grant interim relief by directing the I.O to preserve the I Phone 13 Pro Max in its original condition and not to carry out any further activity on it till the final disposal of this revision

d) Grant any other relief which this Hon'ble Court deems fit and proper in the interest of justice."

2. The petitioner, appearing in person, submits that his wife and son were arrested in the relevant FIR and, at the time of their arrest, the officials of NCCIA took into possession different articles, including the above-mentioned mobile phone, gold ornaments, and cash amount. He contends that the said articles belong to him and his family, have no nexus with the commission of the alleged offence, and are not required for the purpose of trial. It is further argued

Crl. Revision No. 44/2026

that the learned trial Court has already ordered the release of certain electronic devices; therefore, refusal to release the I Phone 13 Pro Max is discriminatory and without lawful justification. According to him, a mere positive forensic report cannot be made a ground to permanently deprive a lawful owner of his property.

3. Conversely, the learned Assistant Attorney General opposed the petition and submitted that the iPhone 13 Pro Max was duly taken into possession through a recovery memo, which forms part of the investigation record. He further submits that the said mobile phone was sent for forensic examination and the forensic report has been found positive, as relevant material was recovered therefrom. It is also submitted that the mobile phone is case property and its release at this stage may prejudice the prosecution's case. As regards the claim of gold ornaments and cash amount, the learned Assistant Attorney General submits that the same have not been shown to have been recovered by the Investigating Officer during the course of investigation.

4. I have heard the arguments of the petitioner and learned Assistant Attorney General and have perused the record with their able assistance.

5. The record reflects that the iPhone 13 Pro Max was recovered during the investigation, and a recovery memo in that regard was prepared by the Investigating Officer. The said mobile phone was

3

Crl. Revision No. 44/2026

thereafter sent to the forensic laboratory for analysis.

According to the forensic report, relevant material, including defamatory and incriminating material, was found in the said device. In such circumstances, the mobile phone has assumed the character of case property and also constitutes a material piece of evidence for the purposes of investigation and trial. At this preliminary stage, when the evidentiary value of the recovered device is yet to be examined by the learned trial Court, its release to the petitioner may create a reasonable apprehension of tampering, alteration, deletion, or loss of digital evidence.

6. The learned trial Court has passed the impugned order after taking into consideration the nature of the recovered mobile phone, its forensic result, and its

relevance to the pending proceedings. No illegality, material irregularity, jurisdictional defect, or perversity has been pointed out which may warrant interference by this Court in the exercise of revisional jurisdiction.

7. For the foregoing reasons, the instant criminal revision, being devoid of merit, is hereby dismissed.

However, the Investigating Officer shall ensure preservation of the iPhone 13 Pro Max and its digital contents in accordance with the law, maintaining a proper chain of custody, so that no prejudice is caused to either party during trial.

(KHADIM HUSSAIN SOOMRO)
JUDGE

S.Akhtar

